

major part of them, shall be at liberty to transfer or deposit such stocks or securities into or in the name of the Accountant-General (*c*), with his privity, in the matter of the particular trust subject to the orders of the said Court, and in every such case the receipt of one of the cashiers of the said Bank for the money so paid, or the certificate of the proper officer of the transfer or deposit of such stocks or securities, shall be a sufficient discharge to such trustees or other persons for the money so paid, or the stocks or securities so transferred or deposited.

* II. That *such orders as shall seem fit* shall from [*361] time to time be made by the Court of Chancery in respect of the trust moneys, stocks, funds or securities so paid in, transferred and deposited as aforesaid, and for the investment and payment of any such moneys, or of any dividends or interest on any such stocks or securities, and for the transfer or delivery out of any such stocks and securities, and for the administration of any such trusts generally *upon a petition* to be presented in a summary way; and service of such a petition shall be made on such persons as the Court shall direct; and every order made upon any such petition shall have the same effect as if the same had been made in a suit regularly instituted; and if it shall appear that any such trust funds cannot safely be distributed without the institution of one or more suit or suits, the Court may direct any such suit or suits to be instituted.

52. 12 & 13 Vict. c. 74. — This Act did not enable the *major part* of trustees to pay in or transfer a fund where the other trustees had a *legal control over the fund and would not concur*. But by 12 & 13 Vict. c. 74, it was enacted, that where moneys, annuities, stocks, or securities were vested in persons as trustees, executors, administrators, or otherwise, and the *major part of them* were desirous of transferring the funds into Court under the Trustees Relief Act, the Court, on a *petition* presented under the said Act for that purpose, might direct the transfer by the major part, without the concurrence of the rest, and might make an order on the necessary parties to permit such a transfer.

(c) Now the Paymaster General; see 35 & 36 Vict. c. 44, ss. 4, 6.